

Ms T vs State Of Haryana And Others on 20 May, 2026

Author: Harsimran Singh Sethi

Bench: Harsimran Singh Sethi

LPA No.846 of 2021 (O&M) and
other connected cases

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

228-1

LPA No.846 of 2021 (O&M)
Date of Decision: 20.05.2026

Ms. 'T'

.....A

Versus

STATE OF HARYANA AND OTHERS

.....

228-2

LPA No.847 of 2021

Ms. 'T'

.....

Versus

STATE OF HARYANA AND OTHERS

.....

228-3

LPA No.848 of 2021

Ms. 'T'

.....A

Versus

STATE OF HARYANA AND OTHERS

.....

CORAM : HON'BLE MR. JUSTICE HARSIMRAN SINGH SETHI
HON'BLE MR. JUSTICE DEEPAK MANCHANDA

Present: Mr. Sunieta Ojha, Advocate,
Ms. Pragti Bhatia, Advocate, for the appellant.

Mr. Aman Mittal, DAG, Haryana.

Mr. R.S. Rai, Senior Advocate (joined through VC)
Mr. J.S. Bhatia, Ms. Rubina Virmani,
Mr. Rajender Singh, Mr. L.S. Sidhu and
Mr. Niraj Singh, Advocates, for respondent No.3.

HARSIMRAN SINGH SETHI, J. (Oral)

1. By this common order, all the aforementioned appeals, the details of which have been given in the heading, are being disposed of as all the appeals involve the same question of law on similar facts.

For the sake of convenience, facts are being taken from LPA-846-2021.

2. The present appeal has been filed against the judgment of learned Single Judge dated 22.03.2021, by which, the writ petition filed by the respondents challenging the initiation of proceedings under the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases Act, 2013 (for short, 'the 2013 Act'), has been allowed on the ground that the written complaint made with the local committee by the appellant dated 18.10.2019 was beyond the limitation provided under Section 9 of the 2013 Act.

3. Certain factual background needs to be given before deciding the issue raised in the present set of appeals. The appellant was working with the respondent-Adidas India Marketing Private Limited, and she remained working with the said company till she resigned from the job on 16.01.2019.

After the resignation, a complaint was filed by the appellant on 18.10.2019 against the employees of the company, namely, Vivek Tyagi and Pulin Kumar raising certain allegations under the 2013 Act to be looked into by the Local Committee as constituted under Section 6 of the 2013 Act. After the said complaint was filed, the same was challenged before this Court by filing the petitions i.e. CWP-32707-2019 by Vivek Tyagi, CWP-32708-2019 by Pulin Kumar and CWP-32712-2019 by Adidas India Marketing Private Limited. In the said writ petitions, a plea was raised before the Court that the complaint made by the appellant herein dated 18.10.2019 could not be looked into by the Local Committee being made without jurisdiction being beyond the limitation.

4. Notice of motion was issued in the said writ petitions and the appellant contested the claim of writ petitioners before the learned Single Judge so as to contend that the complaint so made to the Local Committee dated 18.10.2019, was perfectly within the limitation provided under Section 9 of the 2013 Act and the complaint also enumerated that the details of incident in schedule 1 appended to the complaint and the items which were mentioned starting from item No.16 onwards till 47 in the schedule, have to be taken into account to conclude on the point of limitation as provided integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases under the 2013 Act and further, the argument raised was that the complaint dated 18.10.2019 made by the appellant is required to be looked into by the Local Committee even qua limitation issue.

5. Learned Single Judge considered the facts and decided the issue vide judgment dated 22.03.2021 holding that the complaint which was made on 18.10.2019, which complaint also carried a schedule to depict the list of events of the sexual harassment and as per the said list, the last event of the sexual harassment is dated 03.11.2018 and in case, the limitation is taken from the said date keeping in view Section 9 of the 2013 Act, the complaint dated 18.10.2019 is beyond the limitation provided which is maximum six months from the last alleged sexual harassment incident and all the writ petitions were allowed with a direction that the complaint dated 18.10.2019 cannot be taken into account by the Local Committee for any purpose.

Feeling aggrieved against the said decision, the present appeals have been filed.

6. Learned counsel appearing on behalf of the appellant argues that the learned Single Judge has ignored the incidents, which were part of the complaint dated 18.10.2019 starting from 16.01.2019 onwards till 11.10.2019 when the complaint on the SHe-Box was filed and, accordingly, the decision of the learned Single Judge that the said complaint dated 18.10.2019 was beyond limitation is incorrect and cannot be sustained and therefore, the appeal is liable to be allowed so as to set aside the judgment of the learned Single Judge and to allow the Local Committee to look into the complaint dated 18.10.2019 and investigate the matter qua the allegations made in the said complaint.

7. Learned counsel for the appellant submits that the Court has the jurisdiction to allow such complaints to be enquired into even if, such integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases complaint is beyond six months from the last incident of the sexual harassment so as to render effective delivery of justice to an aggrieved woman, who has been sexually harassed at the workplace. Hence, rather than dismissing the writ petitions on the ground of limitation, while exercising jurisdiction under Article 226 of the Constitution of India, learned Single Judge should have extended the limitation so as to allow the investigation of the complaint made by the appellant. Learned counsel for the appellant further submits that once the incidents faced by the appellant were duly reported to the appropriate authorities within the respondent-

company, which request have gone unresolved, these facts should have been looked into by the learned Single Judge while deciding the writ petitions qua limitation. Hence, when the same complaints were not being addressed by the company, there was no other option left with the appellant but to file the complaint dated 18.10.2019. And, therefore, the same cannot be treated as time barred in any manner.

8. Learned senior counsel appearing on behalf of respondent No.3- company submits that under Section 9 of the 2013 Act, anyone who is sexually harassed at the workplace, has to make a complaint in writing to the competent authority within a period of three months of the incident, which in the present case, was never made. Learned senior counsel for respondent No.3 further submits that though under the second proviso to Section 9(1) of the 2013 Act, the liberty has been given to the Local Committee to condone the said limitation period of three months by another three months if satisfied that sufficient reasons prevented the woman from filing the complaint earlier but, in the present case, even under the extended period of three months, no written complaint was made by the appellant to the competent authority as enshrined under 2013 Act and the complaint was integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases only made on 18.10.2019 after a period of nine months of her even having left the company on 16.01.2019. Learned senior counsel further submits that a written complaint was made for the first time after leaving the company and that too after the period of nine months of such leaving of the company when there was no master-servant

relationship existing between the appellant and the company, and same has rightly been adjudicated by the learned Single Judge to hold that the same was impermissible keeping in view the requirements of Section 9 of the 2013 Act.

9. Learned senior counsel for respondent No.3 further submits that out of all the incidents, which were given by the appellant in the schedule attached along with the written complaint in order to bring the issue before the Local Committee, none of the incidents mentioned after 03.11.2018 relates to the sexual harassment rather, the same were being projected as harassment so as to bring the issue under the ambit of 2013 Act. Learned senior counsel for respondent No.3 further submits that under the 2013 Act, any incident which takes place only during the course of employment can be raised but once, it is clear that the appellant resigned from service on 16.01.2019, which resignation was accepted on the same date, and after that there was no existing employment and therefore, no master-servant relationship between the appellant and the company hence, any incident after 16.01.2019 cannot be brought under the 2013 Act, even otherwise, to get the limitation extended. Hence, the impugned order passed by the learned Single Judge, keeping in view the facts and circumstances of the present case to hold that as per the complaint submitted by the appellant qua sexual harassment, last alleged incident is of 03.11.2018, hence limitation of 60 days expired much before 18.10.2019 when the written complaint was filed is perfectly valid.

integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases

10. The last argument raised by learned senior counsel for respondent No.3 that though, after leaving the company, a complaint dated 18.10.2019 was filed raising certain aspects but, at the time of leaving the company, a performa was filled by the appellant herself in her own handwriting wherein she had mentioned that she had no grievance while working with the company and her work experience with the organization was excellent and therefore, the contradictory stand has been taken by the appellant which goes against the legal maxim 'Qui approbat non reprobatur' which means that a party cannot blow hot & cold simultaneously and therefore, this fact may be kept in mind while deciding the issue.

11. Rebutting the said argument, learned counsel for the appellant submits that the appellant was not in a good sound mental health on the day when she was "forced to resign", which also led to certain observations given by her, which cannot be taken for nothing happened during the course of her employment as being suggested by learned senior counsel for respondent No.3, but, once even the learned Single Judge has mentioned that the last incident of sexual harassment happened on 03.11.2018, while the appellant was working with the respondent-company and therefore, any observations made by the appellant while leaving the company, be not treated as a validation for whatever happened with her during the course of her employment.

12. We have heard the learned counsel for the parties and have gone through the record with their able assistance.

13. The jurisdiction which has been prescribed for entertaining a written complaint under the 2013 Act is subject to limitation provided.

Learned Single Judge had reproduced Section 9 of the 2013 Act, which is also being reproduced hereunder for the ready reference:

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LPA No.846 of 2021 (O&M) and other connected cases "9. Complaint of sexual harassment.--(1) Any aggrieved woman may make, in writing, a complaint of sexual harassment at workplace to the Internal Committee if so constituted, or the Local Committee, in case it is not so constituted, within a period of three months from the date of incident and in case of a series of incidents, within a period of three months from the date of last incident:

Provided that where such complaint cannot be made in writing, the Presiding Officer or any Member of the Internal Committee or the Chairperson or any Member of the Local Committee, as the case may be, shall render all reasonable assistance to the woman for making the complaint in writing:

Provided further that the Internal Committee or, as the case may be, the Local Committee may, for the reasons to be recorded in writing, extend the time limit not exceeding three months, if it is satisfied that the circumstances were such which prevented the woman from filing a complaint within the said period. (2) Where the aggrieved woman is unable to make a complaint on account of her physical or mental incapacity or death or otherwise, her legal heir or such other person as may be prescribed may make a complaint under this section."

14. A bare perusal of the above reproduction would show that the right is given to a woman who suffers from any sexual harassment at the workplace, to raise the same before the competent authority in writing but such right has to be exercised within a period of three months of any such incident involving sexual harassment at the workplace. Further, the Local Committee to which the jurisdiction has been given to look into such complaints, has been given a further power empowering the said Local Committee to condone the period of three months by another period of three integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases months, meaning thereby that in case, any complaint is filed alleging sexual harassment at the workplace even after a period of initial three months but before expiry of a total of six months (from the date of last incident), the Committee can exercise jurisdiction so as to entertain such complaint by condoning the limitation of a further period of three months in case, it is satisfied that such complaint could not be filed by the victim within the initial period of three months and have valid explanation that due to some sufficient reasons, such a complainant was estopped from filing such complaint within the prescribed limitation period.

15. In the present case, it is a conceded fact that starting from 16.01.2019, when the resignation of the appellant was accepted, she was no longer an employee of the respondent-company. The written complaint was filed for the first time before the Local Committee on 18.10.2019 i.e. after a period of nine months of leaving the job. Once, the appellant was not an employee for a period of nine months before filing the complaint to the Local Committee, the learned Single Judge has rightly looked into as to whether, the said complaint was within the limitation provided or not.

Rather, it was the argument/contention of the respondents appearing before this Court that such complaint which is beyond the limitation, irrespective of the allegations, cannot be looked into.

16. The question which arises before this Court in the present set of appeals is whether the finding recorded by the learned Single Judge that since the last alleged incident having a colour of sexual harassment took place on 03.11.2018, the limitation will start from the said day, is correct interpretation keeping in view the facts and circumstances of the present case, including the details given in the schedule annexed with the complaint dated 18.10.2019.

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LPA No.846 of 2021 (O&M) and other connected cases

17. The schedule annexed with the written complaint dated 18.10.2019 given by the appellant is being reproduced hereunder for the ready reference so as to adjudicate the claim of the appellant that the complaint dated 18.10.2019 was within the limitation as provided under Section 9 of the 2013 Act.

Sr. No.	Date	Description
1.	12th	After seeing my display picture

January on what's app in which I was 2018 wearing an orange T-shirt and on left side of the chest "Pocket full of Sunshine" was written, Vivek asked me what was written and kept staring at my breast for some time with smirk on his face.

I found behaviour of Vivek quite immature and unprofessional for somebody who is employed at senior level.

2. 6th We all went out for team dinner February at Whiskey Sambha in Gurgaon 2018 there he kept telling me to have smoke. I told him I don't smoke then he started forcing me to teach how to smoke.

3. February I caught Vivek many times Screen shot of 2018 going through my facebook blocked and instagram account, his act accounts of stalking me on social media (Annexure A) made me uncomfortable hence I blocked him on facebook and instagram accounts.

4. st 1 March On day of holi Vivek kept Pictures and 2018 chasing me and deliberately video touching me with an excuse of (Annexure B) festival celebration. I repeatedly told him to stay away but he did not listen I told him also I will make video and show it Pulin but despite my repeated warning he did not stop.

5. nd 22 April We had all lawyer football Pictures 2018 match. We were having group (Annexure C) picture, Vivek came from behind and kept his and on my shoulder and slipped away on my chest, I had to grab and shake off his hand to stop his integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases further action.

6. 24th April I raised issue with Pulin about 2018 - 27th the unwelcomed behaviour of April 2018 Vivek, Pulin just came out of his cabin and casually told Vivek not to do his everyday escalator staring at me and that's it, no further action taken.

7. 28th April Pulin insisted me to join him Pictures posted 2018 - 1st for a conference in Krabi, by me May 2018 Thailand. During the (Annexure D) conference he kept calling me and e-mail for some excuses. I was not written by feeling comfortable hence I unknown person was keeping distance from who also Pulin. When we came back and substantiated resumed office, Pulin kept the fact telling in the office that I was (Annexure I) missing from the trip, and I was not with him. He posted it in the what's app group of the Legal Team as well. In reply I posted a picture of mine sitting in the conference during session.

8. May 2018 I noticed Pulin started calling e-mail written me in his cabin frequently and by unknown made me sit for no real work. person also He would pretend to work on substantiated laptop but stare at me which the fact made me uncomfortable, and (Annexure I) even if I asked him should I come later but he won't let me go and would ask me to sit and wait. This happened 3-4 times then I started giving excuses whenever he asked me to come in his cabin to avoid the awkward situation.

9. May-June I raised issue of harassment on 2018 the people pulse which is centralized employee survey tool. But no response received.

10. 12th - 13th Pulin went to Mumbai for a e-mail by June 2018 conference organized by Retail unknown person Association of India (RAI) and who also on 12th June asked me to join substantiated him in Mumbai. Travel Desk of the fact Mumbai booked my ticket and (Annexure I) I asked for return ticket for the same day only as my mother was alone at home.

After conference when I was leaving for airport, Pulin was not happy that I was leaving same day he asked me to stay back but I left as my tickets integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases were booked already. Next day when Pulin came to office he kept telling in front of other team members that I took very late night flight, what was the urgency of coming back on same day etc.

11. 14th Pulin told me he is not well August versed with the technology so 2018 unable to order Biryani online for his family. I gladly ordered first time dated 6th April 2018 but then it became routine, Pulin Kumar will call from his cabin on intercom and asked me to order Chicken Biryani online for his family. I realize it was his way of humiliating me since he would never ask anybody else to order it and I saw him frequently using all social media app and doing himself all banking related work then why not ordering food all by himself, hence when on 14th August 2018 he asked me to order Chicken Biryani for his family which I did and told him also ordering food for his family regularly is not part of my job, he can do it himself or somebody else in the team can do it.

12. 7th We had some team event Pictures September wherein we all wore Indian (Annexure E) 2018 traditional attire. I was taking selfie and Vivek came from behind and tried to make physical contact with me.

13. 22nd Pulin and Ritu tried to frame Messages October me in case of misconduct exchanged over 2018 wherein I was not at fault. emails related to Fortunately I had call records the matter on with the person from business my official team, Satish, who misbehaved email id with me therefore Pulin could tarjana.raai@adi not take any action against me das.com can be instead he tried to close the retained. I don't matter informally. Satish is also have copy of it very close friend of Ritu Gupta.

14. 3rd I went for a friend's Diwali November party, Vivek was also invited.

2018 I was crossing him and he pulled me with my hand close to him and whispered in my ear that "this colour suits you". It startled me and I started integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases walking ahead in order to avoid any further unwelcome act by Vivek.

15. November- I raised issue of harassment December again on the people pulse 2018 which is centralized employee survey tool. But no response received.

16. 14th / 15th I went for a college level January mediation tournament to judge 2019 in order to encourage college students. Since I was not representing adidas I thought It was not required to tell Pulin about the conference.

Somebody informed Pulin about my presence at the tournament. When I met Pulin on 15th January 2019 I told him since it was college level tournament and I was not representing adidas hence I did not inform about it in reply he said be careful in future and nothing else.

I got busy with my work, after sometime Ritu Gupta asked me to come with her in meeting room. So I went with her she started talking which did not make any sense to me which included about my performance, code of conduct etc. and then she started threatening me that she will ruin my career etc. She told me to resign or consequences will be dire. Further she told me they already have prepared lot of things in background against me and I will not be able to escape. I could not understand why she was threatening me like this but I could sense there was some conspiracy

cooking against me.

17. 16th I got scared as I could not Copy of January understand what was going on resignation 2019 so I offered my resignation on (Annexure F) 16th January 2019 at 11:49 Call recording AM. with my ex-

Meanwhile my colleague from colleague who previous organisation called me received call and informed me that he from adidas received a call on 12th/13th (Annexure F2) January 2019 somebody from (Requesting adidas. That person told my identity of the integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases colleague that we got to know person to be that Tarjana has inflated her kept salary and other documents confidential) from previous organization hence we are digging on this issue. My colleague replied them that for such matter they should contact HR of previous organization and he is not right person to discuss such matter.

Ritu replied to my email at 1:08 PM and stated that my resignation accepted and I am relived with immediate effect.

To my utter shock why I was asked to leave by end of the day.

I handed over the work pending with me to Ritu and I spoke to her and requested her to please give me at least 30 days' time as I was not prepared financially but she refused and walked away.

I went to hand over my system IT department but IT person told me to come tomorrow for handover of system and other formalities.

18. 17th I got exit forms from Ms Copy of no dues January Shweta Kumari, HR executive form (Annexure 2019 for getting no-dues approval G) from all the respective departments. All the departments gave approval after checking records including accounts department. I went to Pulin Kumar also for approval of head of the department. While signing he told me to not to share any details about my exit and keep my mouth shut or I will face dire consequences.

The system was with Ritu, I told her to give me my system as I wanted to get no-dues approval and take back up of my personal data.

As per Pulin's instruction my system was intentionally locked from central server so that the system becomes useless for the purposes of either extracting or deleting data from the time being; for sole motive that I would not be integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases able to extract my personal data, which they had intention to forge and use it against me at later stage to threaten me to implicate me in false cases in the event I would try to raise my voice, which they actually they did and may be proved by the very wordings of the Full and Final Settlement Letter.

19. 27th Surprisingly Nestor Matondo, January Regional Compliance Director 2019 of Adidas called me and was asking me about my resignation and circumstances around my resignation. However, when I was hesitant for the actual reasons, he asked me specifically "why I was not speaking up? Is it because Pulin threatened me?", thereafter I broke down and was not mentally prepared to have any discussion. So he postponed the conversation for next day.

20. 28th Nestor Matondo reached out to What's app January me on call again and asked chats (Annexure 2019 about email written by me. I H) and email was not aware of which email communication he was referring to hence I (Annexure I) gave my personal email id to him and requested him to forward the said referred email to me.

Nestor Matondo shared email written by somebody with my initials, and also portraying that the said email written by me and vide email that person had provided chain of events of sexual harassment towards me by Pulin Kumar and Vivek Tyagi I informed Nestor that the email id is not mine and I did not write the email.

21. 29th I had a call with Nestor and What's app January discussed in detail the said chats (Annexure 2019 email and circumstances H) around my resignation. I confirmed the incidents which were true and due to Pulin's threat and threat of my future career being ruined by Pulin as he is very powerful and integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases influential person, I denied all the allegations against Pulin.

Nestor gave me assurance that all my concerns will be addressed and investigation will be fair and unbiased.

22. 2nd Over what's app chat, when I What's app February asked Nestor about taking chats (Annexure 2019 action against the person who H) has written email and impersonated me Nestor told me that it's my prerogative what action to be taken is my decision, however later he said he will check with Katherine Roseveare, General Counsel of adidas and fair play compliance team and revert. He later told me the email by the unknown person considered as whistleblower hence they want their brand name not to come in complaint.

Nonetheless I conveyed to Nestor that I am determined to file complaint with cybercrime police and take action against the person who impersonated me in email.

Further Nestor raised the concern why HR, adidas India team did not provide any help to me when I was going through the harassment and forced to resign.

I told Nestor that Parul Malhotra, HR Head, adidas India team was marked in the email sent by unknown person hence clarify to Parul the email was not written by me and it will not have any effect on my Full & Final settlement amount as it was pending with HR as per my discussion with HR representative from adidas.

23. 4th 1 kept in contact with Nestor What's app February with regard to investigation and chats (Annexure 2019 - 5th provided all the details asked. H) March 2019 On 5th March 2019 Nestor told me he has concluded the investigation and submitted report with Katherine Roseveare, General Counsel integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases and she will take final decision. On the call on 5th March 2019, Nestor agreed that the exit formalities not followed and there is grave conspiracy hatched by Pulin Kumar, Ritu Gupta, Vivek Tyagi along with HR team.

24. 12th March Nestor sent me message to e-mail 2019 discuss some new issues on communication call. (Annexure J) We decided time and got on call. He informed me that finance team has highlighted some discrepancies in the invoices submitted by me one year ago and they recovered duplicate copy from back-up drive, which was collected by Ritu Gupta from Legal team.

Later he shared details of invoices over email.

25. 19th March Nestor sent me follow up mail e-mail 2019 colored with allegations of communication alluding money to my end of (Annexure J) service.

26. 20th March I replied to Nestor that: e-mail 2019 communication "It seems that I am being (Annexure J) victimized now for the sole reason that I stood up and co-

operated with you on an already on-going conspiracy in adidas India, which seems to have started through an e-mail by someone in the system impersonating me. This conspiracy is very large and serious and seems to have senior officials of adidas India and therefore it may be observed that in order to save them, I am being victimized for bill/invoices which are clearly more than around year old.

It may also be observed that my personal data/folder has been retrieved/accessed without my due permission or authorization at all, wherein it may also be noted that I was not given enough time on my last day, which was a sudden relieving day with full of humiliation for me for reasons integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases best known to adidas India, and I was not allowed to extract my own data on my last day at adidas India: which further establishes the mala fide intention of senior officials of adidas India to implicate me in a conspiracy to hide their own wrongs, when we see the picture and events as a whole.

It may further be pointed out and to be noted that my ex-

colleagues are getting calls from third party agency working for adidas and asking directly "what was Tarjana's salary at your organization as she has exaggerated the numbers while coming to adidas India". Such kind of defamatory statements and investigation related to my personal integrity and modesty behind my back is again a conspiracy of adidas India and cannot be accepted by me.

Further, it is also requested to kindly update me on the name of the person who sent an email impersonating me who I believe is from the adidas India only, and also kindly update on status of the complaint under Prevention of Sexual Harassment at Work Place."

27. 21st March Nestor replied stating few e-mail 2019 excerpts from emails: communication (Annexure J) "India legal team cannot be involved in inquiring about these invoices. That's why I took over this clarification to ensure this is treated without bias and you are not harassed.

The reason this needs to be resolved is this has an impact in your end of service payment.

You may argue that how did they get hold of such documents, and yes, I will investigate and address that in a separate case. But meanwhile, to clear your name and to release the end of service, we need to address the issue."

integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases With regard to calling my ex-

colleagues Nestor gave me reasoning that it might be for the purpose of doing background check which is followed at the time of joining and agreed that the approach by adidas was not right.

No update on my complaint of workplace harassment and sexual harassment provided by Nestor.

nd

28. 22 March From Nestor's email I can 2019 - figure out he was not doing fair 22nd June investigation in fact trying to 2019 frame me in forgery case which is created by legal team of adidas India headed by Pulin.

I lost all hope of justice and fair investigation from Compliance team of adidas.

Due to my deteriorating mental and physical health my therapist recommended to take off from everything as stress will make my health worst.

Hence, I completely cut off from everything and took off for few days.

29. 7th May Pulin and Vivek went to attend What's app 2019 a legal conference in Moscow, chats (Annexure Russia. As informed by one of K) my friends that Pulin was spreading rumours about me that I was terminated because I did some financial fraud in adidas.

I sent him message on what's app as well to clarify that the email sent by unknown person is not me and asked if he can meet me to clarify some issues around email as I suspected the person impersonated me is from adidas only.

I approached Pulin as I was really terrified since he was hell bent after me to ruin my career completely.

I did not receive any reply from Pulin.

30. 13th May My friends and ex-colleagues What's app integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases 2019 called me to tell about the chats and call rumours spread by Pulin and records with my Vivek on Moscow trip. As my ex-colleague friends and ex-colleagues did (Annexure) not believe allegations made by To be kept Pulin and Vivek on me are true. confidential Pulin and Vivek both said such things to everyone present in the conference which was defamatory in nature, tarnishing my personal and professional reputation and outrageous to my modesty.

31. 23rd June I sent follow up email to Nestor Copy of e-mail 2019 asking update on my workplace communication harassment and sexual (Annexure J) harassment complaint.

32. 25th June HR executive, adidas What's app 2019 approached me for confirming chats (Annexure my postal address for sending L) my Full & Final settlement.

33. 27th June I received a letter dated Copy of full and 2019 12.06.2009 with subject line final settlement Full and Final Settlement. The letter (Annexure letter mentioned the fact that I M) tendered my resignation on 16th January 2019 which was duly accepted by the management with immediate effect.

34. 12th July I wrote email to Nestor Copy of email 2019 highlighting the facts and (Annexure J) threats stated in the Full and Final Settlement.

Despite assurance given by Nestor I can clearly see Legal Team, adidas India was involved in drafting of the abovementioned letter.

Despite I did not say anything earlier about the harassment by Pulin Kumar due to his threat and my apprehension about my career at stake but at this stage of time I decided that I had suffered enough at the hands of Pulin and now the sufferings had become unbearable and therefore I decided to stand up against my continued victim victimisation and harassment & raised my voice against Pullin's misdeeds as well.

The said full & final settlement integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases letter is further extension of the continuous victimisation, harassment and threatening with sole intention to intimidate me, silence me and prevent me to fight for justice.

I requested Nestor to update me
on investigation of sexual

harassment and workplace harassment complaint and to further give me proper relieving letter within 05 days from the date of the email, failing which I will approach statutory authority.

35. 17th July 2019 Nestor reached out to me over call and said he is not aware of such Full and Final Settlement letter and he was not involved in the drafting. Hence, asked me to share copy of the letter, which I shared after sometime. He did not give me any update on workplace harassment and sexual harassment complaint.

36. 18th July 2019 Nestor accepted that the language used in the Full and Final Settlement letter is not appropriate and it could have been done in better way. Further he gave me assurance he will get me my relieving letter. Nestor gave me assurance that he has forwarded my complaint of sexual harassment and workplace harassment to India Team and will be conducted under supervision of legal head. I sent him message later that the proceedings cannot involve Pulin Kumar, Ritu Gupta as they themselves are harasser and Parul Malhotra HR head is working under influence of Pulin Kumar only hence she is not neutral party to be part of investigation.

37. 23rd July Nestor informed me Parul is Copy of what's 2019 not willing to give any app chat integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases relieving letter. He have me (Annexure H) assurance he will get me my relieving letter even though he has to approach higher management.

38. 2nd August Nestor informed me over Copy of what's 2019 what's app chat that to get app chat relieving letter I have to (Annexure H) formally request to Parul Malhotra, HR Head, adidas.

I requested Nestor to provide Parul Malhotra's email id.

39. 2nd August I filed complaint with Cyber Copy of 2019 Crime Police, Gurgaon against complaint the unknown person who has (Annexure N) written email with my initials and stated facts related to me.

40. 5th August I sent email as guided by Copy of email 2019 Nestor, to Parul Malhotra (Annexure O)

41. 8th August I sent follow up message to Copy of what's 2019 Nestor as I did not receive any app chat reply from Parul. (Annexure H) Nestor gave me assurance that he is following up with Parul and have sent reminder to her.

42. 9th August I sent follow up message to Copy of email 2019 Nestor as I did not receive any communication reply from Parul till 11:00 AM. (Annexure J) At 16:16 Parul replied on email Copy of email that she is having the relieving communication letter dispatched. (Annexure O)

43. 16th I received reliving letter Copy of August wherein it was giving reference relieving letter 2019 to Full and Final Settlement (Annexure P) letter dated 12th June 2019.

44. 20th I sent email to Nestor Copy of email August expressing my gratitude to him communication 2019 for helping me to get relieving (Annexure J) letter.

Further I asked for update on the sexual harassment and workplace harassment complaint but no response received from Nestor.

45. 17th Since I did not receive any Copy of email September response from Nestor I wrote communication 2019 him one more email stating that (Annexure J) "despite assurance given by you to take action on my sexual harassment and work place harassment complaint, and repeated reminders sent to you, there is no word from you or adidas India team yet.

I approached you in good faith to resolve the issue at internal level but non-responsive integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases attitude of your organization clearly send the message of unwillingness to take any action against perpetrators and promote culture of harassing women including sexual harassment and later forcing them to leave organization through some trick or while threatening them with false charges of penal offences.

Therefore, I am constrained to escalate my complaint with appropriate statutory authorities now."

46. 17th I lodged complaint on SHe-Box Copy of email September but due to technical issues it receipt 2019 could not reach to inbox. (Annexure Q)

47. 11th I filed complaint on SHe-Box Copy of email October again receipt 2019 (Annexure R)

18. Learned Single Judge has given the finding that after the item No.14 relating to the allegations dated 03.11.2018, there are no other allegations which relate to sexual harassment and therefore, three months limitation is to start from 03.11.2018 and even if, the maximum limitation of six months is taken from the said date, the complaint dated 18.10.2019 was still beyond the limitation period.

19. The argument of learned counsel for the appellant is that the remaining incident also describes the acts of sexual harassment and therefore, the view taken by the learned Single Judge is not correct.

20. From the schedule of incidents alleged by the appellant reproduced hereinbefore, it may be noticed that after 03.11.2018, the next incident is dated 16.01.2019. It may be noticed that on 16.01.2019 the appellant had already resigned from service. The question which will arise is that whether, any incident which takes place when the appellant was not an employee, can be taken as an incident having taken place at the "workplace"

so as to bring the same under 2013 Act. In the absence of any employment, integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases the incident so being described by the appellant to be of sexual harassment, cannot be taken as an incident having been occurred during the course of employment. Once, the item starting from No.16 till the end were not during the course of employment, the question that whether such incident even if assumed for the sake of argument to have taken place, will extend the limitation or not does not arise.

21. Though, the term 'workplace' has been clearly defined under Section 2 (o) of the 2013 Act however, the 2013 Act is only for incident of "sexual harassment" happening at the 'workplace'. Once, it is a conceded position that the appellant was not working with the respondent-company from the date of her resignation i.e. 16.01.2019 and any alleged incident after such date being brought in operation to extend the limitation provided under Section 9 of 2013 Act so as to invoke the jurisdiction under the 2013 Act cannot be accepted.

22. Though, this Court can go into the allegations also starting from serial No.16 till serial No.47 whether the same will fall within the definition of "sexual harassment" or not but once, the Act covers only the act which takes place at the workplace during the course of employment which can be looked into and it is a conceded position that the appellant was not an employee in the respondent-company since 16.01.2019 onwards, hence any allegation subsequent to the resignation and leaving the work place, will not extend the limitation as provided under Section 9 of the 2013 Act.

23. The other argument raised by learned counsel for the appellant is that the Court should have exercised the jurisdiction to extend the limitation so as to allow the Local Committee to look into the complaint dated 18.10.2019, it may be noticed that the jurisdiction of the Court is to adhere to the 2013 Act as legislated by the legislation and it cannot sit over integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases the legislation to go beyond the same. Once, the legislation in its wisdom has provided a limitation under Section 9 and outer limit to such conclusion has been provided under the 2013 Act, going beyond such limitation period will be exercising a jurisdiction which is not conferred upon the Court amounting to judicial overreach. Hence, not exercising the jurisdiction to extend the limitation as being argued by the learned counsel for the appellant was perfectly valid keeping in view the decision taken by the learned Single Judge.

24. The last argument which has been raised by learned counsel for the appellant that there were complaints already made by the appellant after the incident to the authorities concerned and the authorities never took any action on such complaints for the redressal of the grievance of the appellant during the course of her employment and therefore, the respondents should have been directed to take appropriate action against the alleged violators. It may be noticed that, if any plea was taken by the appellant before the company qua her sufferings and the company was not responding, the appellant should have availed the remedy available to her under 2013 Act immediately. Though, she availed the remedy by filing a written complaint dated 18.10.2019, but by the said time, the limitation to raise such grievance had already lapsed keeping in view the Section 9 of the 2013 Act.

25. It may be noticed that the allegations starting from serial No.16 of the schedule attached to the written complaint dated 18.10.2019 are being brought in to contend that there was a continuance of sexual harassment of the appellant and the same did not end on 03.11.2018 as held by the learned Single Judge and therefore, the limitation which has been taken as provided under Section 9 of the 2013 Act starting from 03.11.2018 is incorrect and the sexual harassment was suffered continuously even thereafter as well keeping integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases in view the incidents narrated and mentioned in the schedule to the written complaint dated 18.10.2019 have been ignored by the learned Single Judge.

26. It may be noticed that the said schedule giving the details of incidents after 03.11.2018, which are being brought in operation to contend that there was a continuing sexual harassment even after 03.11.2018, is incorrect. There is a difference between harassment and sexual harassment at a workplace. A bare reading of the incidents which have been mentioned by the appellant herself in the schedule annexed to the written complaint dated 18.10.2019 prima facie show that the same related to the resignation and correspondence thereafter with regard to the entitlement/liability of the appellant to get the dues admissible to her after resignation. Such correspondence with regard to the admissibility of dues upon resignation cannot prima facie be treated as act of sexual harassment. These can be two divergent views of the appellant or the company with regard to the claim raised by

the appellant after submitting her resignation from her job.

Learned counsel for the appellant has not been able to substantiate that there was continuance of act of sexual harassment as per complaint dated 18.10.2019 even after 03.11.2018 in any manner.

27. Learned counsel for the appellant has argued that there was a forced resignation which itself amounts to sexual harassment. It may be noticed that even as of now, the resignation has not been challenged on the ground that the same was not voluntary but was a forced one. In the absence of any such action taken, the argument of the learned counsel for the appellant that the resignation was forced, cannot be accepted. Further, at the time of resignation, the appellant herself described her stay at the company as very cordial. The argument of the learned counsel for the appellant that the appellant was not in a good frame of mind at that time, cannot be integrity of this order/judgment.

LPA No.846 of 2021 (O&M) and other connected cases accepted as, a person who was facing sexual harassment during the course of her employment and was bringing the same to the notice of the company while being on job, will not give such kind of remarks at the time when she is resigning and that too when she is being forced to resign against her will.

28. Further, even in the complaint qua resignation, while describing the date of resignation, it has not been mentioned that the resignation was forced rather, it has been mentioned that the appellant got scared and could not understand what was going on and offered the resignation. Hence, under any circumstances, the claim of the appellant that there was continuance of sexual harassment upto the date of filing of complaint dated 18.10.2019, cannot be accepted in the facts and circumstances of the present case so as to extend the limitation upto the date of filing of the complaint dated 18.10.2019.

29. Hence, the order passed by the learned Single Judge has not been shown to be perverse either on facts or on law and no ground is made out for any interference. Hence, all the aforementioned appeals are dismissed.

30. No other argument has been raised.

31. The order is dictated in open Court in the presence of learned counsel for the respective parties.

32. Civil miscellaneous application pending, if any, is also disposed of.

33. A photocopy of this order be placed on the files of the connected cases.

(HARSIMRAN SINGH SETHI) JUDGE (DEEPAK MANCHANDA) 20.05.2026 JUDGE Sandeep
Whether Speaking/Reasoned : Yes Whether Reportable : No integrity of this order/judgment.